

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Chelsea Yogerst	Team: Squad #11	CCRB Case #: 201600906	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 01/14/2016 4:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/14/2017	Precinct: 46		
Date/Time CV Reported Wed, 02/03/2016 2:57 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 02/03/2016 2:57 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. Officers			
3. POM Michael Pomerantz	10568	947364	046 PCT
4. SGT Alberto Puente	05326	939253	046 PCT
5. DTS Niall Leonard	07613	919294	ESS 04

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b) and § 87(2)(b)	A . Officer(s) Unidentified
B . An officer	Force: An officer used physical force against § 87(2)(b)	B . Alleged Victim Uncooperative
C . DTS Niall Leonard	Abuse: DT Niall Leonard entered and searched § 87(2)(b) in the Bronx.	C . Exonerated
D . SGT Alberto Puente	Abuse: Sgt. Alberto Puente entered § 87(2)(b) in the Bronx.	D . Exonerated
E . POM Michael Pomerantz	Abuse: PO Michael Pomerantz entered § 87(2)(b) in the Bronx.	E . Exonerated
F . SGT Alberto Puente	Abuse: Sgt. Alberto Puente searched § 87(2)(b) in the Bronx.	F . Unsubstantiated
G . POM Michael Pomerantz	Abuse: PO Michael Pomerantz searched § 87(2)(b) in the Bronx.	G . Unsubstantiated
H . Officers	Abuse: Officers entered and searched § 87(2)(b) in the Bronx.	H . Exonerated

Case Summary

On January 14, 2016, at approximately 4:00 p.m., § 87(2)(b) informed her mother, § 87(2)(b) that § 87(2)(b) s son, § 87(2)(b) had been involved in a shooting at their apartment building located at § 87(2)(b) in the Bronx. Upon arriving to the scene, they were notified by officers that § 87(2)(b) had shot a male individual on the § floor. An unidentified officer told § 87(2)(b) that she was not getting on the “fucking elevator” (**Allegation A**). § 87(2)(b) informed § 87(2)(b) that an unidentified officer physically shoved her out of the way (**Allegation B**). An officer told § 87(2)(b) to take the “fucking pictures,” “Shut the fuck up” and “Get the fuck off the floor” (**Allegation A continued**). An officer told § 87(2)(b) to “Shut the fuck up” (**Allegation A continued**). DT Niall Leonard of ESU entered and searched § 87(2)(b) s apartment (**Allegation C**). Sgt. Alberto Puente and PO Michael Pomerantz, both of 46th Precinct, entered and searched § 87(2)(b) s apartment (**Allegations D, E, F, and G**). At approximately 7:45 p.m., two officers arrived with a search warrant and told § 87(2)(b) that she was not allowed to enter into her apartment unless she signed it. Once she signed the warrant, she observed that her apartment had been searched and items had been damaged (**Allegation H**). § 87(2)(b) was arrested for § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

There is no video evidence for this case.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation because of § 87(2)(b) s arrest.
 - § 87(2)(b) did not file a Notice of Claim (Board Review 01).
 - [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(b)
- § 87(2)(b)

Civilian and Officers CCRB Histories

- This is § 87(2)(b) and § 87(2)(b) s’ third CCRB complaint and § 87(2)(b) s second CCRB complaint (Board Review 25-27). § 87(2)(g)
 - Sgt. Puente has been a member of service for 10 years and has 16 allegations in 8 cases. Among these allegations, there are no substantiated allegations § 87(2)(g)
 - PO Pomerantz has been a member of the service for 7 years and has 17 allegations in 10 cases. In case 201200816, a frisk allegation was substantiated and the Board recommended charges; the case was resolved with a plea deal. § 87(2)(g), § 87(4-b)
- § 87(2)(g)

- DTS Niall Leonard has been a member of service for 19 years and this is his first complaint. There are no substantiated allegations § 87(2)(g).

Potential Issues

§ 87(2)(b) was uncooperative with the investigation and did not provide a sworn statement (Board Review 19). § 87(2)(b) was uncooperative with the investigation and did not provide a sworn statement because his attorney did not want him to participate. Witness § 87(2)(b) was uncooperative to the investigation and did not provide a sworn statement (Board Review 28).

Findings and Recommendation

Explanation of Subject Officer Identification

§ 87(2)(b) described the officer that used profanity with her and § 87(2)(b) as a white male, blonde and grey hair, 5'5" tall, early sixties, and 160 pounds. Officers from the 46th Precinct, SRG, SOD, and ESU responded to the incident over the radio, which occurred during a tour change, and given that there was a shooting, presumably numerous officers responded without going over the radio, leaving a pool of dozens of officers. Sgt. Puente, PO Pomerantz and DT Leonard denied making or hearing any officers make the alleged statements. § 87(2)(g)

§ 87(2)(b) stated that although she did not witness it occur, § 87(2)(b) informed her that an officer physically shoved her out of the way. § 87(2)(b) could not describe the officer and § 87(2)(b) was uncooperative to the investigation. Sgt. Puente, PO Pomerantz and DT Leonard denied interacting with or shoving § 87(2)(b) and denied seeing any other officer do so. § 87(2)(g)

§ 87(2)(g)

”

Recommendations

Allegation A-Discourtesy: An officer spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that when she was in the lobby of the building, she told officers that she wanted to go upstairs to her apartment to use the bathroom and explained to them that they were going to have to break down the door of her apartment because she has the apartment keys. In response, an officer told her that she was not getting on the “fucking elevator.” Once § 87(2)(b) and § 87(2)(b) arrived to the § 87(2)(b), § 87(2)(b) told an officer that she was going to take pictures. In response, the officer told her to take the “fucking pictures,” “Shut the fuck up” and “Get the fuck off the floor.” § 87(2)(b) told the officer not to speak to her mother like that. In response, the officer told § 87(2)(b) that he noticed that she worked for the city. When § 87(2)(b) informed him that she worked for the Department of Parks and Recreation, the officer told her that she needed to “Shut the fuck up” because he could contact her job.

Sgt. Puente, PO Pomerantz and DT Leonard denied making or hearing any officers make the alleged statements.

§ 87(2)(g)

§ 87(2)(b). Therefore, it is recommended that **Allegation A** be closed as **officer unidentified**.

Allegation B-Force: An officer used physical force against § 87(2)(b) § 87(2)(b) stated that although she did not witness it occur, § 87(2)(b) informed her that she asked officers if she could go to § 87(2)(b) with § 87(2)(b) while she was in the lobby. The officers told § 87(2)(b) that she could not go and an officer physically shoved her out of the way.

Sgt. Puente, PO Pomerantz and DT Leonard denied interacting with or shoving § 87(2)(b) and denied seeing any other officer do so.

§ 87(2)(g)

§ 87(2)(b), it is recommended that **Allegation B** be closed as **victim uncooperative**.

Allegation C-Abuse of Authority: DT Niall Leonard entered and searched § 87(2)(b) § 87(2)(b) **in the Bronx.**

Allegation D-Abuse of Authority: Sgt. Alberto Puente entered § 87(2)(b) **in the Bronx.**

Allegation E-Abuse of Authority: PO Michael Pomerantz entered § 87(2)(b) **in the Bronx.**

Allegation F- Abuse of Authority: Sgt. Alberto Puente searched § 87(2)(b) **in the Bronx.**

Allegation G- Abuse of Authority: PO Michael Pomerantz searched § 87(2)(b) **in the Bronx.**

Allegation H-Abuse of Authority: Officers entered and searched § 87(2)(b) **in the Bronx.**

It is undisputed that officers entered and searched § 87(2)(b) in the Bronx.

§ 87(2)(b) stated once she arrived to her apartment building located at § 87(2)(b) and while she was waiting outside of the building, an officer approached her and asked her for permission to search her apartment because of the time it takes to get a warrant from the courts. § 87(2)(b) told the officer that the officers did not have consent to search her mother's apartment because she had just seen § 87(2)(b) being put on a stretcher and into an ambulance. § 87(2)(b) got upset with the officer because she realized that they had already entered her apartment and taken § 87(2)(b) out without a warrant and felt as though the officer was trying to get permission to search her apartment to cover up what they had already done. At approximately 6:00 p.m., § 87(2)(b) and § 87(2)(b) gained access to the § 87(2)(b) and § 87(2)(b) observed three officers standing outside of her apartment door. During this time, § 87(2)(b) was loud and upset because the officers had broken her door and because she never gave them permission to enter her apartment. The officers told § 87(2)(b) and § 87(2)(b) that they were not allowed into her apartment. § 87(2)(b) observed an officer bent over and speaking into her apartment and although

§ 87(2)(b) could not hear what this officer was saying into her apartment or see any officers in her apartment, she knew that there were officers inside because the officers outside of the apartment were talking to them and because she could hear voices and items falling within her apartment.

§ 87(2)(b) and § 87(2)(b) exited the building because § 87(2)(b) wanted a Pepsi and § 87(2)(b) needed to smoke. When they returned to the § 87(2)(b) a short time later, an officer was still standing near the front door of her apartment with a maintenance worker nicknamed § 87(2)(b) determined by the investigation to be § 87(2)(b). The officer told § 87(2)(b) and § 87(2)(b) that they were not allowed to enter the apartment because they were fixing the door and explained that they needed to wait because officers were bringing a warrant. At approximately 7:45 p.m., two officers arrived on the § 87(2)(b) and brought what § 87(2)(b) believed to be a warrant. § 87(2)(b) told the officers that she was not signing anything because the officers had already entered into her apartment and removed her son. An officer told § 87(2)(b) that she could not go inside her apartment unless she signed the paper. At this point, § 87(2)(b) was exhausted so she decided to sign the paper. The only thing § 87(2)(b) saw on the warrant was that it said 4:45 p.m.

When § 87(2)(b) was finally able to get inside her apartment, she saw the couches were upside down and two chairs had been turned over, one of which had been damaged. The meat from her freezer had been thrown into the living room, into the sink and onto the floor. The drawers in her kitchen, some of which were damaged, had been emptied out. Papers, pillows, § 87(2)(b) shoes and items from the closet and from a black bag containing shoes and other items were thrown throughout the apartment. The shopping cart that she uses to transport her dirty laundry had been turned over and her closet had been kicked in. The items in her linen closet such as her sheets, towels and curtains had been moved and her silk clothes had stains on them (Board Review 32).

Sgt. Puente testified that he and PO Pomerantz responded to § 87(2)(b) in the Bronx after they received a radio call that a 911 caller had reported that a male had been shot there. When the officers received the call, they were provided with details about the incident, including descriptions of the perpetrator and the victim, but Sgt. Puente could not recall what the details were specifically. As soon as Sgt. Puente and PO Pomerantz arrived to § 87(2)(b) at approximately 1:25 p.m., they immediately went to the video surveillance room which contained video footage of the hallways on every floor of the building. Once there, the video technician showed them the video footage of the incident which showed § 87(2)(b) shooting a black male and then running towards the staircase and entering onto the § 87(2)(b) and into his apartment with a gun. While Sgt. Puente and PO Pomerantz were reviewing the footage, they were also able to watch a live stream, which showed them that § 87(2)(b) had not exited his apartment. Upon reviewing the footage, Sgt. Puente called the patrol supervisor Sgt. Jorge Carvajal and informed him that they had seen § 87(2)(b) running into his apartment on the § 87(2)(b) on the video footage.

Immediately thereafter, Sgt. Puente and PO Pomerantz responded to the § 87(2)(b) and observed that there were multiple units already there including TARU and SRG, in addition to numerous

supervising officers. The officers had not entered into § 87(2)(b)'s apartment yet because they were waiting for the arrival of a search warrant. Sgt. Puente could not recall what other units were at the scene and how many officers were on the floor. The officers knew that § 87(2)(b) was in the apartment because Sgt. Puente had observed the live feed of the video surveillance which never showed him exiting his apartment. There was no trail of blood or any other indication that § 87(2)(b) was inside the apartment.

Officers from the 46th Precinct went to obtain the emergency search warrant, but Sgt. Puente could not recall who went to obtain the search warrant or who made the decision to obtain the search warrant. ESU was called to the scene to perform the entry because § 87(2)(b) had barricaded himself in the apartment. Once ESU arrived, they waited to enter the apartment because officers were still in the process of obtaining a search warrant. The officers waited for more than two hours for the search warrant before an officer at the scene that Sgt. Puente could not recall was called and notified that the search warrant had been signed by a judge. Once they had been instructed to do so, ESU officers entered into § 87(2)(b)'s apartment. Sgt. Puente could not recall who made the decision or who informed ESU that they had permission to enter. Sgt. Puente did not see the physical search warrant at the scene when the ESU officers entered, but explained that the officers were dealing with a live shooter. Sgt. Puente could not recall if the officers had to damage the door to enter and did not see what the ESU officers did while they were in the apartment. After a few minutes, the ESU officers exited the apartment with § 87(2)(b) who was handcuffed immediately escorted to the hospital § 87(2)(b).

At some point after ESU exited the apartment, Sgt. Puente and PO Pomerantz entered into the apartment because they had been notified that the search warrant had been signed by a judge and because they believed that there was a firearm inside the apartment. Other officers entered into the apartment with them but Sgt. Puente could not recall who these officers were. The officers needed to enter the apartment because § 87(2)(b) had been seen entering into the apartment with a firearm and did not have a firearm when he was escorted out of the apartment. There were no additional reasons why the officers needed to enter the apartment at this time. Sgt. Puente could not recall what time they entered into the apartment. He initially stated that he made the decision to enter the apartment, but later stated that an officer he could not recall instructed him to enter into the apartment because a search warrant had been obtained. PO Pomerantz was given the physical search warrant at the scene but Sgt. Puente did not recall when he received it or if he received it before or after they entered into the apartment. He also did not recall when the search warrant was signed. Once the officers entered the apartment, they searched throughout it for any places where a firearm could be hidden. The officers recovered a firearm from the closet and the clothes that § 87(2)(b) was seen wearing in the video footage. Once they had completed the search, Sgt. Puente immediately returned to the 46th Precinct station house to begin arrest processing and did not return to the scene. When Sgt. Puente left the apartment, the apartment had not been secured yet and additional units remained at the scene. Sgt. Puente could not recall how long he was in the apartment for or what time he left to return to the station house.

Sgt. Puente denied that he asked any civilians for permission to enter or search the apartment and denied that any civilians objected to their entry. Sgt. Puente did not recall being a part of a conversation between § 87(2)(b) and officers regarding a search warrant. He denied hearing § 87(2)(b) request a copy of the search warrant and denied hearing her refuse

to sign the search warrant. He also denied that he or any other officers told § 87(2)(b) that she would not be allowed into her apartment unless she signed the search warrant (Board Review 29).

§ 87(2)(g) . PO Pomerantz testified that when he and Sgt. Puente first arrived to the § 87(2)(b) officers had not entered into § 87(2)(b)'s apartment yet, but were attempting to gain access. He could not recall who these officers were or how they were trying to gain access, but it took time for ESU officers to enter the apartment because they were attempting to enter in a safe and tactical manner. PO Pomerantz believed that ESU had some indication that § 87(2)(b) was in the apartment other than the video footage but he did not recall what it was.

At approximately 4:24 p.m., PO Pomerantz became aware that ESU had gained access into the apartment and had arrested § 87(2)(b). PO Pomerantz explained that although it says in his memo book that § 87(2)(b) was arrested at 4:24 p.m. (Board Review 06), he believed that he was apprehended a little before that time because the ESU officers needed time to enter the apartment and secure § 87(2)(b) before they had time to call central and provide them with a time of arrest. Once the ESU officers exited the apartment, they announced that the apartment was clear.

Immediately thereafter, PO Pomerantz, Sgt. Puente and other officers that PO Pomerantz could not recall entered into the apartment because they wanted to double check that no one else was hiding inside the residence. PO Pomerantz could not recall who made the decision to enter the apartment at this time. When PO Pomerantz was asked if he had a discussion with officers prior to entering into the apartment, he denied doing so and stated that it is common practice for officers to enter a location after ESU has cleared it because they often don't find everyone. In the past, PO Pomerantz has personally found individuals hiding in apartments after they had been cleared by ESU. In addition, the officers knew that they had to freeze the apartment and decided that they should ensure that there was no one else in the apartment while they waited for the search warrant. There were no additional reasons why they entered the apartment at the time.

Once they entered into the apartment, the officers opened each door, walked into each room, took a brief look around and determined there was no one else in the apartment. After the officers checked each room in the apartment, they congregated in the living room area of the apartment and waited there for approximately twenty minutes until the search warrant arrived. PO Pomerantz initially did not have an answer as to why they remained in the living room after they checked the rooms, but later stated that it had to do with the fact that there was a space issue because so many officers had responded to the scene and the hallway was crowded. There were no additional reasons why they remained in the apartment prior to the arrival of the search warrant. PO Pomerantz did not recall what time the search warrant was obtained but was informed of such by multiple supervisors that he could not recall. PO Pomerantz did not have the physical search warrant in his possession while he was at the scene and only obtained it once he had returned to the station house. He did not recall which officers obtained the search warrant or which officers had the physical search warrant at the scene. PO Pomerantz, Sgt. Puente and the other officers that he could not recall searched the apartment for approximately an hour. PO

Pomerantz did not recall there being any damage done to the apartment while they conducted their search (Board Review 30).

PO Pomerantz prepared the complaint report and arrest report which states that § 87(2)(b) was arrested at 4:24 p.m. § 87(2)(b) (Board Review 03 and 04).

DT Leonard testified that upon arriving to the scene, he immediately responded to the § 87(2)(b) and was informed that officers had video footage of § 87(2)(b) running into his apartment following the incident. DT Leonard was not aware of any other indication that § 87(2)(b) was in the apartment. The ESU unit that was already at the scene had secured the front door by tying a rope to the handle of the door, which enabled them to control the door while they attempted to communicate with § 87(2)(b). Once the door had been secured, the ESU officers attempted to communicate with § 87(2)(b) by knocking on and speaking to § 87(2)(b) through the door. The officers called § 87(2)(b)'s name, asked him to cooperate with them and told them who they were and that everything was going to be okay. They did not get a response from § 87(2)(b).

After some time had passed and there was still no response from § 87(2)(b) § 87(2)(e) [REDACTED]

Once the peep hole had been enlarged, the officers looked into the apartment, but were unable to see § 87(2)(b) or very far into the apartment. § 87(2)(e) [REDACTED]

The ESU officers continued to try and negotiate with § 87(2)(b) and gain contact with him through the door for approximately an hour but he did not respond.

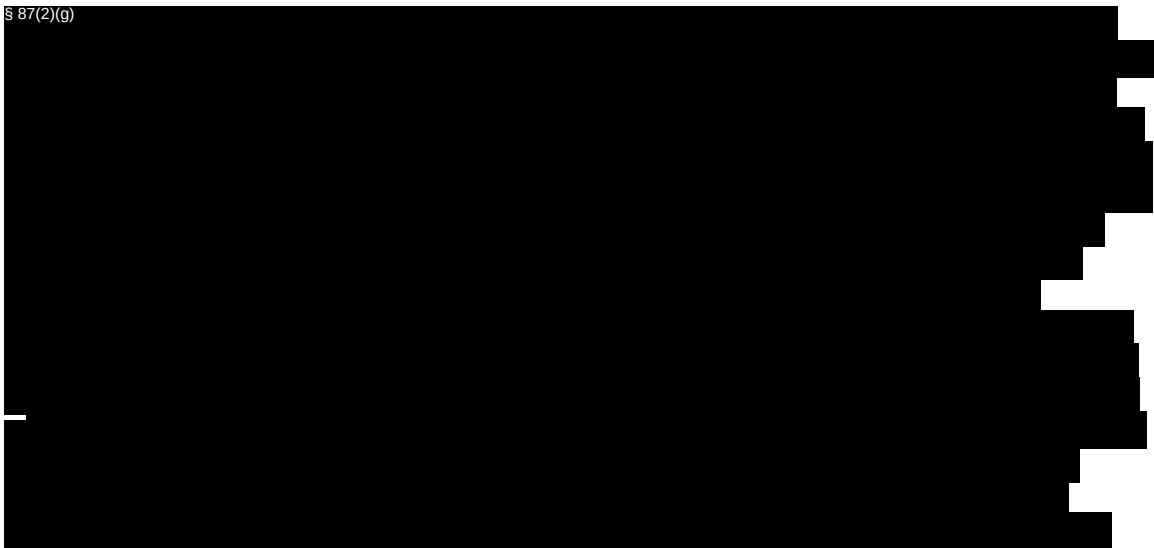
§ 87(2)(e) a decision was made to use a police dog in an attempt to apprehend him. ESU officers, including DT Leonard, breached the front door of the apartment by using a rabbit tool to break the lock. Once the door had been opened, the police dog was sent alone into the apartment and came into contact with § 87(2)(b). The dog's handler informed the rest of the officers of such and then called the dog out of the apartment. § 87(2)(b) then became compliant, told the officers that he would cooperate and came to the front door of the apartment. DT Leonard denied that officers had to go into § 87(2)(b)'s apartment to obtain him. Once he was at the door, § 87(2)(b) was immediately handcuffed and escorted off the scene. It was then that at least six ESU officers, including DT Leonard, entered into his apartment to conduct a general check for safety purposes and to ensure that there was no one in the apartment that was hurt. According to DT Leonard, conducting a secondary check is typical protocol. There were no additional reasons why they entered into the apartment at this time. DT Leonard had no indication that there was anyone inside the apartment or that anyone inside the apartment was hurt. Only ESU officers entered into the apartment at this time and checked under beds, behind furniture and in closets. DT Leonard could not recall the exact time they entered into the apartment. DT Leonard denied that they searched the apartment for anything other than hurt

or hiding individuals and denied that they removed anything from the apartment. He did not recall there being any damage in the apartment but stated that they did move furniture around. There was no one else in the apartment. Once the ESU officers checked the apartment, they informed the rest of the officers on the § 87(2)(b) that the apartment had been cleared, turned the scene over to the precinct units and immediately left. DT Leonard did not know if a search warrant was obtained but denied that there was a search warrant on scene when they entered into the apartment and denied hearing any officers discuss a search warrant (Board Review 31).

The ESU Report, prepared by DT Leonard, was consistent with his statement to the CCRB (Board Review 09).

The Event regarding this incident corroborates that officers were notified of a possible crime involving shots fired and provided with a description of a black male. At 4:24 p.m., ESU had the perpetrator in custody (Board Review 11). Search Warrant # § 87(2)(b) was obtained on § 87(2)(b) and was signed by Criminal Court Judge § 87(2)(b) (Board Review 10). According to People v. McBride, 14 N.Y. 3d 440 (2010) (Board Review 33), officers may enter a home to effect an arrest without a warrant under exigent circumstances. Factors that may contribute to exigency include the gravity or violent nature of the offense with which the suspect is being charged, whether the suspect is reasonably believed to be armed, a clear showing of probable cause to believe that the suspect committed a crime, strong reason to believe that the suspect is in the premise being entered, a likelihood that the suspect will escape if not swiftly apprehended, and the peaceful circumstances of the entry. According to People v. Dallas, 8 N.Y.3d 890 (2007) (Board Review 24), officers may enter and search a location under the “emergency doctrine” if they have reasonable suspicion to believe that there is an immediate need for their assistance to protect life or property, if the search is not motivated primarily by the intent to arrest and seize evidence, and if there is reasonable basis to associate the emergency with the area to be searched. In People. Powell 101 A.D.3d 756 (2nd Dept., 2012), under the fellow officer rules, officers are entitled to rely on the information received from a fellow officer, as this information is presumed reliable and accurate (Board Review 23).

§ 87(2)(g)



[REDACTED]. Therefore, it is recommended that **Allegation C** be closed as **exonerated**.

Therefore, it is recommended that **Allegations D** and **E** be closed as **exonerated**.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) . Therefore, it is recommended that **Allegations F and G** be closed as **unsubstantiated**.

It is not in dispute that an emergency search warrant § 87(2)(b) was obtained and a search of the apartment was conducted. § 87(2)(g)

Therefore it is recommended that **Allegation H** be closed as **exonerated**.

Squad: 11

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date